

regard to specific legal and factual circumstances. Please note that the interpretation of Art. 53(b) EPC given in G 2/12 was abandoned in G 3/19 in view of Art. 31(4) Vienna Convention.

G 1/07 made reference to Opinion G 1/04, OJ 2006, 334 (point 6 of the Reasons). In that Opinion, the Enlarged Board stated – with reference to decisions of the boards of appeal having acknowledged the existence of such an a priori principle – that the "frequently cited principle", according to which exclusion clauses from patentability laid down in the EPC are to be construed in a restrictive manner, does not apply without exception. In that Opinion concerning the definition of the term diagnostic methods practised on the human or animal body, the Enlarged Board came to its conclusion that the said exclusion was indeed to be interpreted narrowly only after a thorough examination of the wording and the purpose of the exclusion clause concerned. The same approach was also taken in the Enlarged Board's decision G 2/06 (OJ 2009, 306). There, the Enlarged Board was concerned with the interpretation of the exclusion from patentability of biotechnological inventions relating to uses of human embryos for industrial or commercial purposes under R. 28(c) EPC (and the corresponding Art. 6(2) of the EC Directive on the legal protection of biotechnological inventions). The Enlarged Board made no reference to the existence of a principle of narrow construction of exceptions from patentability. Instead, as a method for interpreting the extent of the prohibition the Enlarged Board went directly to the rules of interpretation laid down in the Vienna Convention, i.e. it looked at the terms of the provision and its object and purpose (point 16 of the Reasons). No mention was made in that decision of any narrow or restrictive view which would have to be taken because the said prohibition was an exception to patentability. The Enlarged Board decided to proceed in the same way in G 1/07.

1.2. Application of the rules of interpretation

This section provides further examples, along with the related arguments, of how the interpretation methods set out above in this chapter, particularly in III.H.1.1.2, have been applied.

In consolidated cases G 2/12 and G 2/13 (OJ 2016, A27 and A28) the term "essentially biological processes for the production of plants" in Art. 53(b) EPC needed to be construed pursuant to the general rules of interpretation. The Enlarged Board noted that it was established in the jurisprudence that the principles of interpretation provided for in Arts. 31 and 32 of the Vienna Convention were to be applied when interpreting the EPC. This question was to be analysed by means of a **methodical interpretation** of Art. 53(b) EPC in respect of, primarily, its wording and, secondarily, considering also the legislator's intention and the aspects of systematic and historical interpretation. In particular, it applied various methodical lines of interpretation which included grammatical, systematic and teleological interpretations as well as supplementary means of interpretation, principally, the preparatory work. None of these lines of interpretation led the Enlarged Board to conclude that the term "essentially biological processes for the production of plants" extended beyond the processes to products defined or obtained by such processes. This result was confirmed when the preparatory work of the EPC was taken into account as a supplementary means of interpretation.

Importantly, while G 3/19 ultimately abandoned the interpretation of Art. 53(b) EPC arrived at in G 2/12, in view of how the law had developed in the meantime, it did not call into question the principle behind applying the various methods of interpretation.

A number of more recent decisions and opinions likewise give extensive accounts of the rules for interpreting the EPC and how they are to be applied. This is true of the aforementioned opinion G 3/19, which addressed each of the various methods of interpretation in turn. Decision G 1/18 (OJ 2020, A26) too contains several passages recapitulating the rules for interpreting the EPC (point III of the Reasons) and dealing with their application to the point of law referred in that case (in particular points IV and X of the Reasons). See also G 1/19 (pedestrian simulation), G 4/19 (double patenting) and G 1/21 of 16 July 2021 (OJ 2022, A49) (oral proceedings by videoconference).

1.2.1 Literal interpretation

The Enlarged Board stated that when interpreting provisions of the EPC, it usually starts from the wording of the relevant provision and even if the wording of a provision reveals its meaning clearly, it is then to be examined whether the result of the literal interpretation is confirmed by the meaning of the words in their context. It could well be that the wording only superficially has a clear meaning. At any rate, a literal interpretation must not contradict the purpose of the provision (see G 1/90, OJ 1991, 275, 278, point 4 of the Reasons); G 6/91 (OJ 1992, 491, 499, point 15 of the Reasons); G 3/98 (OJ 2001, 62, 71, point 2.2 of the Reasons). In G 2/12, more than one meaning could in principle be attributed to the wording (cf. G 1/88, OJ 1989, 189, 193, point 2.2 of the Reasons). Therefore, the true and intended meaning of the term "essentially biological processes for the production of plants" needed to be analysed further.

In G 1/18 (OJ 2020, A26), the Enlarged Board dealt with literal interpretation in point IV.1. Having reiterated the principles stated in G 2/12, it went on to interpret Art. 108, first sentence, EPC literally, before giving Art. 108, second sentence, EPC a first narrow and then broad literal interpretation. It found that, on a literal interpretation based on a joint reading of the two first sentences of Art. 108 EPC (broad literal interpretation), an appeal was validly filed only if the appeal fee was paid within the prescribed two-month period. It added that there was no inconsistency in the provision's wording in its three language versions. It concluded by stating that this literal interpretation of Art. 108, first and second sentences, EPC led to a result in keeping with the provision's purpose.

In T 844/18, the board stated that the EPC was a special agreement within the meaning of Art. 19 Paris Convention, so application of its provisions could not contradict the basic principles concerning priority laid down in the Paris Convention. Therefore, in order to interpret "any person" in Art. 87(1) EPC, it was necessary to interpret the legal concept of "any person" in Art. 4A Paris Convention, the interpretation given in both treaties needing to be the same. The board concluded that the ordinary meaning of the term "any person" in Art. 87(1) EPC was ambiguous. The term "*celui qui*" in the authentic French text of Art. 4A Paris Convention was perhaps less ambiguous and more likely to support the "all applicants" approach. The "all applicants" approach was certainly a plausible interpretation of the term from the perspective of its ordinary meaning and appeared to be the one

consistently applied by several member states of the EPC over the last hundred years (see points 36 et seq. and 83 of the Reasons). The board then turned to the object and purpose of the Paris Convention.

In T 2320/16, the board was of the opinion that, taking the ordinary meaning of the terms in Art. 116 EPC into account, it could not be concluded that oral proceedings by videoconference infringed the right to oral proceedings laid down in that Article. The board added that the "travaux préparatoires" on Art. 116 EPC 1973 neither confirmed nor contradicted its interpretation of Art. 116 EPC.

1.2.2 Systematic interpretation

In G 2/12 the Enlarged Board of Appeal stated that the systematic interpretation formed a second pillar when construing a legal provision and its terms (see G 1/88, point 3 of the Reasons; G 9/92, OJ 1994, 875, point 1 of the Reasons; G 4/95, OJ 1996, 412, 421 et seq., points 4 and 5 of the Reasons; G 3/98, OJ 2001, 62, 71, point 2.2 of the Reasons; G 4/98, OJ 2001, 131, 143, point 4 of the Reasons). In applying this second method of interpretation the meaning of the wording in question was to be established in the context of the relevant provision itself. In addition, the provision as such had to be interpreted taking into account its position and function within a coherent group of related legal norms (see also G 1/18, point IV.2, which endorsed and followed this approach).

1.2.3 Teleological interpretation

Like national and international courts, the Enlarged Board applies the method of teleological interpretation in the construction of legislative provisions in the light of their purpose, values, and the legal, social and economic goals they aim to achieve. In this, the Enlarged Board examined their objective sense and purpose (e.g. G 1/88, point 5 of the Reasons; G 1/03, point 2.1.1 of the Reasons). The starting point was marked by determining the general object of the relevant provision (*ratio legis*) because the interpretation could not contradict the provision's spirit (G 6/91, point 8 of the Reasons). In point IV.3, G 1/18 endorsed this approach, set out in point VII.3 of G 2/12, virtually word for word. In its interim conclusion on this point, G 1/18 found that the teleological interpretation, i.e. the interpretation of the meaning in the light of the purpose of Art. 108, first and second sentences, EPC, led to the same interim conclusions as reached on a literal and a systematic interpretation.

In T 844/18, since the ordinary meaning of the term "any person" in Art. 87(1) EPC was ambiguous, the board had to turn to the object and purpose of the Paris Convention and, more broadly, public policy considerations in order to interpret "any person". This was also in line with Art. 31(1) and 33(4) of the Vienna Convention (see points 30 and 45 of the Reasons).

1.2.4 Subsequent agreement or practice

The object and purpose of the exclusion under Art. 53(b) EPC was not, however, sufficiently obvious to answer the question whether or not the clause was to be construed

in a narrow or broad way. The Enlarged Board noted that under Art. 31(3) of the Vienna Convention any subsequent agreement between the parties regarding the interpretation of the treaty or its application, and any subsequent practice in the application of the treaty which establishes the agreement of the parties regarding its interpretation is to be taken into account. It pointed out that R. 26(5) EPC (formerly R. 23b(5) EPC 1973) could be regarded as such subsequent agreement and practice. R. 26(1) EPC explicitly calls for due consideration of the Biotech Directive (see G 2/06, point 16 of the Reasons).

The decision to adopt R. 28(2) EPC could not be regarded as a subsequent agreement between the parties that shall be taken into account for the interpretation of the treaty, in the meaning of Art. 31(3)(a) of the Vienna Convention (T 1063/18). Opinion G 3/19 (OJ 2020, A119, point XIX.) stated that the board's conclusion in T 1063/18 seemed to be based on the notion that in decision G 2/12, the Enlarged Board gave a definitive interpretation of the scope of the exception patentability, which could only be overturned by a formal amendment of Art. 53(b) EPC itself. However according to G 3/19, this notion, which was not supported by the EPC itself or by any general legal principle, was too strict, bearing in mind that Art. 53(b) EPC is to be open to interpretation and, furthermore, that a subsequently made rule which diverges from a particular interpretation of an EPC Article by a board of appeal is not per se ultra vires (see T 315/03). A particular **interpretation** which has been given to a **legal provision** can **never** be taken as **carved in stone**, because the meaning of the provision may change or evolve over time. This aspect is intrinsic to the ongoing development of the law by way of judicial decision-making. G 3/19 regarded the introduction of R. 28(2) EPC as a clear legislative intent, in the sense of Art. 31(4) Vienna Convention, which could not be ignored; as regard Art. 31(3)(a) to (b) Vienna Convention, legislative and administrative developments in a quarter of the contracting states did not amount to a subsequent agreement or practice.

1.2.5 Secondary considerations: dynamic interpretation

The Enlarged Board stated that a "dynamic interpretation" might come into play where considerations have arisen since the Convention was signed which might give reason to believe that a literal interpretation of the wording of the relevant provision would conflict with the legislator's aims. Secondary considerations serve the purpose of testing the legal soundness of the conclusions reached in interpreting the scope of application of the process exclusion under Art. 53(b) EPC. The Enlarged Board concluded that the concept of a dynamic interpretation did not require revising the result of the interpretation established by applying traditional rules of construction (G 2/12, OJ 2016, A27, also cited in T 1063/18). In G 3/19, however, the Enlarged Board held **to the contrary** that the dynamic interpretation required as a result of the introduction (after G 2/12) of R. 28(2) EPC, which reflected the contracting states' clear intention, meant the interpretation of Art. 53(b) EPC in G 2/12 had to be abandoned (albeit not with retroactive effect).

The application in G 3/19 of the various methods of interpretation provided for in Art. 31 and 32 Vienna Convention, which also took into account the subsequent developments in the contracting states, did not in fact lead to the finding that the term "essentially biological processes for the production of plants" in Art. 53(b) EPC was to be read clearly and

unambiguously as extending to products defined or obtained by such processes. The Enlarged Board therefore endorsed the conclusions it had come to in this respect in G 2/12. At the same time, however, it acknowledged that Art. 53(b) EPC did not prohibit this broader understanding of the process exclusion either. Furthermore, it recognised that, with the introduction of R 28(2) EPC, the legal and factual situation underlying decision G 2/12 had substantially changed. This amendment constituted a new aspect or consideration which had arisen since the EPC was signed and which could give reason to believe that a grammatical, and restrictive, interpretation of the wording of Art. 53(b) EPC conflicted with the legislator's aims, whereas a dynamic interpretation could bring a result that diverged from the wording of the law.

In relation to the interpretation of Art. 116 EPC, the board in T 2320/16 (oral proceedings by videoconference) stated that there was no need for it to seek further means of interpretation. Art. 125 EPC was not concerned with the interpretation of the EPC but served merely as a "fill-in" in case of missing procedural provisions (G 2/12, point V.(1)). As Art. 116 EPC was understood not to impose any limitation on the specific form of oral proceedings, there was therefore nothing to "fill". Regarding a "dynamic interpretation" of Art. 116 EPC, the board was of the view that it was a further approach to construing *inter alia* a legal provision of the EPC (with reference to G 3/19, point XXII; G 2/12 point VIII.(2).1.(1); G 3/98, point 2.5 of the Reasons). The board found that oral proceedings by videoconference were consistent with both the literal interpretation of Art. 116 EPC 1973 and 2000 and the legislative intent underlying them. The question of whether a dynamic interpretation of Art. 116 EPC had to be considered therefore did not arise. Compare with G 1/21 of 16 July 2021 (OJ 2022, A49) and the referral decision T 1807/15, which explores dynamic interpretation with reference to G 3/19.

2. Interpretation of the EPC affected by TRIPS Agreement

2.1. General

The European Patent Organisation, established by the EPC, which constitutes a special agreement under Art. 19 of the Paris Convention, is not a party to the WTO/TRIPS Agreement. The Enlarged Board of Appeal observed in G 2/02 and G 3/02 (OJ 2004, 483) that although the EPO is not a party to TRIPS and not bound by it, the national legal systems of the EPC contracting states might be affected by TRIPS and they may be under an obligation to see to it that the EPC is in conformity with TRIPS. The European Patent Organisation as an international organisation has an internal legal system of its own, the EPC. The boards of appeal of the EPO have the task of ensuring compliance with the autonomous legal system established by the EPC and are bound by the provisions of the EPC alone (Art. 23(3) EPC).

2.2. Application of the TRIPS Agreement

The issue of the application of TRIPS in the context of the EPC has been considered on a number of occasions by the boards of appeal of the EPO (see for instance G 1/97, OJ 2000, 322; T 1173/97, OJ 1999, 609; J 10/98).